

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

**RESPONDENT’S REPLY TO MARINE TRANSPORT LOGISTICS, INC.’S OPPOSITION TO MOTION
TO DISMISS AND CROSS-MOTION FOR LEAVE TO FILE AN AMENDED COMPLAINT**

Complainant Marine Transport Logistics, Inc. (“MTL”) filed an Opposition to Respondent CMA CGM (America) LLC’s (“CMA”) Motion to Dismiss (“Motion”) that largely ignores the legal grounds for dismissal of this case and requests leave to amend MTL’s Complaint in this action by adding language that would significantly broaden and expand issues addressed by its Complaint outside a common nuclear of operative fact. MTL’s Opposition to the Motion does not address the legal inadequacies of its Complaint but instead falls back upon circular arguments and assertions that show misinterpretations of the relevant pleading standards and the current scope of the Shipping Act.

MTL's Opposition to the Motion attempts to distract from the fundamental flaws in its Complaint and largely ignores the legal basis of CMA's Motion to Dismiss, which is that MTL has failed to state a claim for which relief can be granted under the Shipping Act. MTL fails to plead the facts required to support each of the Shipping Act violations alleged and cannot avoid these fatal flaws by amending its Complaint.

MTL FAILS TO STATE A CLAIM FOR UNREASONABLE PRACTICES

MTL's Opposition to CMA's Motion to Dismiss cannot – despite its best attempts - avoid the impact of the Commission's Final Interpretive Rule issued December 12, 2018 ("Final Rule"), which clarifies the scope of 46 U.S.C. 41102(c) and expressly recognizes that "the Commission consistently [has] required that the unreasonable regulation or practice [be] normal, customary, often repeated, systematic, uniform, habitual, and continuous" as a "manner in which the regulated common carrier was conducting business" to find a violation of 46 U.S.C. 41102(c). The Final Rule goes on to confirm "this understanding as to what constitutes "regulations and practices" under the Shipping Act is supported by multiple accepted rules of statutory construction... the Commission will return" to finding violations of 46 U.S.C. 41102(c) only if they are supported by the above-referenced elements.

MTL's Complaint alleges that CMA violated 46 U.S.C. 41102(c) due to its actions related to a discrete set of 9 shipments of used automobiles. All 9 of the shipments were booked by MTL from November 29, 2017 through December 1, 2017. See attached booking confirmations. CMA's actions related to this isolated set of bookings to a war torn region cannot successfully lay the foundation for finding that CMA engaged in any practice that was "normal, customary, often repeated, systematic, uniform, habitual, and continuous". See the Final Rule. Even if

CMA's actions and/or inactions related to these bookings qualified as "unreasonable" – which they do not – actions related to this isolated set of shipments cannot be construed as "systematic", "often repeated", or as the normal business practices of CMA. MTL's claim that CMA violated 46 U.S.C. 41102(c) must fail.

MTL's Opposition to CMA's Motion to Dismiss requests leave to file an amended complaint, a draft of which is attached to the Opposition Motion. Notably, MTL includes language in paragraph 16 of its Amended Complaint that adds allegations regarding a single, recent booking dated May 2019 that is wholly unrelated to the 9 bookings addressed in its original complaint. Revising the Complaint to add allegations regarding a single 2019 booking cannot establish a "normal, customary, often repeated, systematic, uniform, habitual, and continuous" manner of conducting business; especially where the business practices alleged as unreasonable for one recent shipment are entirely distinct from the allegations raised in MTL's Complaint. *See* Final Rule. MTL should not be allowed to amend its Complaint to add allegations that share no common nucleus of operative fact with the allegations of its Complaint.

**MTL FAILS TO STATE A CLAIM FOR UNDUE OR UNREASONABLE PREJUDICE OR
DISADVANTAGE**

MTL's Opposition to CMA's Motion to Dismiss claims that, despite the plain language of 46 U.S.C. 41104(9), the prohibition against "unreasonable prejudice or disadvantage with respect to any port" is not limited to protecting ports and localities. MTL attempts to support this position by providing a partial summary of the Ocean Shipping Reform Act of 1998, written by the Congressional Research Service. The quote provided does not, however, indicate that 46 U.S.C. 41104(9) protects any entities other than ports and localities. The prohibitions addressed

in this summary apply to a conference or a group or two or more common carriers. In contrast, the Complaint's allegations relate to CMA as an individual common carrier, and do not involve either a conference or a group of two or more common carrier. This quote provides no support for MTL's position.

Even if the prohibitions found at 46 U.S.C. 41104(9) expanded beyond protecting ports and locations, which they do not, MTL's Complaint fails to provide the necessary foundation for a successful unreasonable prejudice claim. According to the Commission in *Ceres Marine Terminals Inc. v. Maryland Port Administration*, 27 S.R.R. 1251 (FMC 1997), a complainant proves unreasonable prejudice by showing: (1) "two parties are similarly situated or in a competitive relationship;" (2) "the parties were accorded different treatment;" (3) "the unequal treatment is not justified by differences in transportation factors;" and (4) "the resulting prejudice or disadvantage is the proximate cause of injury." *Ceres*, 27 S.R.R. at 1270. MTL's Complaint does not plead facts identifying any party that was similarly situated or in a competitive relationship with MTL, or identify any party that CMA treated differently than MTL for shipments of used autos to Yemen during the relevant time period. Furthermore, MTL's Complaint does not claim an unequal treatment not justified by transportation factors. In contrast, MTL's Complaint acknowledges that the relevant restrictions were due to Yemen's political instability and civil war, a situation that is a legitimate and transportation factor. MTL's Complaint fails to support a claim for relief under 46 U.S.C. 41104(9) and must be dismissed.

MTL FAILS TO STATE A CLAIM FOR UNREASONABLE REFUSAL TO DEAL

MTL's Opposition to CMA's Motion to Dismiss fails to support its claim for unreasonable refusal to deal under 46 U.S.C. 41104(10). In contrast, MTL's Opposition supports CMA's Motion

to Dismiss by demonstrating good faith attempts by CMA to reach resolution of issues related to this set of shipments. “An allegation of refusal to deal requires more than that a request is denied.” *Port of Elizabeth Terminal and Warehouse Corp. v. the Port Authority of New York and New Jersey*, 1 F.M.C. 2nd 29 (FMC: Served April 17, 2018). MTL’s conclusive legal statements that CMA unreasonably refused to deal by not agreeing to the terms MTL demanded for Changes of Destination or financial settlement do not provide factual support for its allegations that CMA violated 46 U.S.C. 41104(10). The facts plead by MTL do not plausibly suggest that there was a refusal to deal by CMA or that any such refusal by CMA was unreasonable. *See Port of Elizabeth Terminal and Warehouse Corp.*, 1 F.M.C. 2nd at 41. Instead MTL demonstrates that CMA discussed these shipments with MTL, negotiated a significant discount of charges, and was actively engaged in attempts to find a solution for these shipments. MTL’s Complaint fails to allege sufficient facts to state a plausible Shipping Act claim against CMA under 46 U.S.C. 41104(10) and must be dismissed.

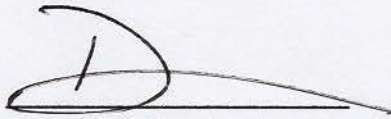
APPLICATION OF 46 U.S.C. 40502 (f)

MTL’s Opposition to CMA’s Motion to Dismiss seems to dispute that a service contract applied to shipments at issue, given MTL’s argument that CMA failed to attach evidence of the service contract to its Motion to Dismiss. CMA elected not to attach a copy of the relevant service contract to its Motion to Dismiss given the inherently confidential nature of that agreement, but has previously provided a copy of the relevant service contract to counsel for MTL as part of this proceeding. The relevant service contract number is 17-1619, as referenced on the attached booking confirmations. Copies of these booking confirmations were previously provided to MTL as part of this proceeding.

CONCLUSION

For the foregoing reasons, MTL's Complaint should be dismissed for failure to state a claim upon which relief may be granted.

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'Draughn Arbona', written over a horizontal line.

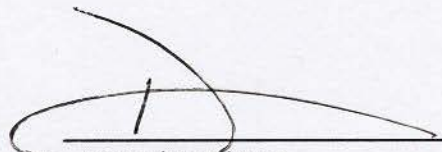
Draughn Arbona
CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk, VA 23502
Tel: 757-961-2132
usa.darbona@usa.cma-cgm.com

Attorney for Respondent CMA CGM (America) LLC

CERTIFICATE OF SERVICE

I hereby certify that I have served a true and correct copy of the foregoing Answer of Respondent CMA CGM (America) LLC on the Complainant by sending a copy via electronic mail to Complainant's attorney at the following address:

Mr. Garry Pogil
112 West 34 Street, 18th Floor
New York, NY 10120
garry.pogil@gmail.com



Draughn Arbona

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Ref: EO-48687

Booking Number: **NAM2937906** Bkg Pty Ref: AUTO C 12/13 Booking Date: 01-DEC-17

Vessel/Voyage: APL HOLLAND / 266VBE

Connecting Vessel / Voyage: CMA CGM AMERIGO VESPUCCI / 082FME

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: HOUSTON, TX

Terminal Cut-Off: 15-DEC-2017 05:00 PM

Loading Terminal: BAYPORT CONTAINER
TERMINAL

VGM Cut-Off Date/Time: 15-DEC-2017 12:00 PM

ETD: 22-DEC-2017 13:42

Transshipment: ANTWERP

ETA: 07-JAN-2018 05:30 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 04-DEC-17 Time:

Quantity: 1 x 40'HC HS Commodity: Other vehicles, with only spar

BOC Commodity: SP, AUTOS, ABDD

Net Weight: 44092.452 LBS

Gross Weight: 52690.481 LBS

Container Number: ECMU9385446 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: BAYPORT CONTAINER TERMINAL

Phone No: 281-291-6074

Address: 12619 Port Road

HOUSTON, TX

77586

UNITED STATES

Remarks: 10 C DAYS

Booking Number: **NAM2937906**

Charge	Pre/Coll	Curr	Amount	Basis	Total
BASIC FREIGHT	P	USD		Unit(s)	
Container inspection fees and survey	C	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking ConfirmationBooking Number: **NAM2937906**

- 6 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
- 8 No express Bill of Lading allowed.
- 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 11 For self propelled vehicle shipments, the auto must run until stalled.
- 12 Shipments of Automobiles over 7 years of age prohibited.
- 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 14 For Automobile Shipments, container with auto must be received at the port 72 hours prior to vessel arrival.
- 15 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 16 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
- 17 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
- 18 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 19 Effective 9/1/09, the Port of Houston Authority will require hazardous documents to be emailed to haz@poha.com, twenty four (24) hours prior to the container arrival at the terminal. If this process is not followed, the trucking company will be turned away. Any cost associated with mis-delivery attempts shall be for the account of the shipper of record.
- 20 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 21 Please check the POHA website at <http://info.poha.com/traffic/bay/vesselschedule.pdf> for the most updated vessel schedules and earliest receiving at the terminal. We encourage our customers to review this website in order to prevent early attempts of delivering cargo to the terminal.
- 22 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 23 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 33 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 34 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Ref: EO-48694

Booking Number: **NAM2937907** Bkg Pty Ref: AUTO C 12/13 Booking Date: 01-DEC-17

Vessel/Voyage: APL HOLLAND / 266VBE

Connecting Vessel / Voyage: CMA CGM AMERIGO VESPUCCI / 082FME

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: HOUSTON, TX

Terminal Cut-Off: 15-DEC-2017 05:00 PM

Loading Terminal: BAYPORT CONTAINER
TERMINAL

VGM Cut-Off Date/Time: 15-DEC-2017 12:00 PM

ETD: 22-DEC-2017 13:42

Transshipment: ANTWERP

ETA: 07-JAN-2018 05:30 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 04-DEC-17 Time:

Quantity: 1 x 40'HC HS Commodity: Other vehicles, with only spar

BOC Commodity: SP, AUTOS, ABDD

Net Weight: 44092.452 LBS

Gross Weight: 52690.481 LBS

Container Number: CMAU7430348 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: BAYPORT CONTAINER TERMINAL

Phone No: 281-291-6074

Address: 12619 Port Road

HOUSTON, TX

77586

UNITED STATES

Remarks: 10 C DAYS

Booking Number: **NAM2937907**

Charge	Pre/Coll	Curr	Amount	Basis	Total
BASIC FREIGHT	P	USD		Unit(s)	
Container inspection fees and survey	C	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

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Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking ConfirmationBooking Number: **NAM2937907**

- 6 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
- 8 No express Bill of Lading allowed.
- 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 11 For self propelled vehicle shipments, the auto must run until stalled.
- 12 Shipments of Automobiles over 7 years of age prohibited.
- 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 14 For Automobile Shipments, container with auto must be received at the port 72 hours prior to vessel arrival.
- 15 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 16 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
- 17 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
- 18 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 19 Effective 9/1/09, the Port of Houston Authority will require hazardous documents to be emailed to haz@poha.com, twenty four (24) hours prior to the container arrival at the terminal. If this process is not followed, the trucking company will be turned away. Any cost associated with mis-delivery attempts shall be for the account of the shipper of record.
- 20 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 21 Please check the POHA website at <http://info.poha.com/traffic/bay/vesselschedule.pdf> for the most updated vessel schedules and earliest receiving at the terminal. We encourage our customers to review this website in order to prevent early attempts of delivering cargo to the terminal.
- 22 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 23 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 33 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 34 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Ref: EO-48695

Booking Number: **NAM2937908** Bkg Pty Ref: AUTO C 12/13 Booking Date: 01-DEC-17

Vessel/Voyage: APL HOLLAND / 266VBE

Connecting Vessel / Voyage: CMA CGM AMERIGO VESPUCCI / 082FME

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: HOUSTON, TX

Terminal Cut-Off: 15-DEC-2017 05:00 PM

Loading Terminal: BAYPORT CONTAINER
TERMINAL

VGM Cut-Off Date/Time: 15-DEC-2017 12:00 PM

ETD: 22-DEC-2017 13:42

Transshipment: ANTWERP

ETA: 07-JAN-2018 05:30 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 04-DEC-17 Time:

Quantity: 1 x 40'HC HS Commodity: Other vehicles, with only spar

BOC Commodity: SP, AUTOS, ABDD

Net Weight: 44092.452 LBS

Gross Weight: 52690.481 LBS

Container Number: TCNU1194396 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: BAYPORT CONTAINER TERMINAL

Phone No: 281-291-6074

Address: 12619 Port Road

HOUSTON, TX

77586

UNITED STATES

Remarks: 10 C DAYS

Booking Number: **NAM2937908**

Charge	Pre/Coll	Curr	Amount	Basis	Total
BASIC FREIGHT	P	USD		Unit(s)	
Container inspection fees and survey	C	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking ConfirmationBooking Number: **NAM2937908**

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- 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
- 8 No express Bill of Lading allowed.
- 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 11 For self propelled vehicle shipments, the auto must run until stalled.
- 12 Shipments of Automobiles over 7 years of age prohibited.
- 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 14 For Automobile Shipments, container with auto must be received at the port 72 hours prior to vessel arrival.
- 15 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 16 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
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- 18 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 19 Effective 9/1/09, the Port of Houston Authority will require hazardous documents to be emailed to haz@poha.com, twenty four (24) hours prior to the container arrival at the terminal. If this process is not followed, the trucking company will be turned away. Any cost associated with mis-delivery attempts shall be for the account of the shipper of record.
- 20 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 21 Please check the POHA website at <http://info.poha.com/traffic/bay/vesselschedule.pdf> for the most updated vessel schedules and earliest receiving at the terminal. We encourage our customers to review this website in order to prevent early attempts of delivering cargo to the terminal.
- 22 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 23 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 33 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 34 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Booking Number: **NAM2937909** Bkg Pty Ref: Booking Date: 01-DEC-17

Vessel/Voyage: APL HOLLAND / 266VBE

Connecting Vessel / Voyage: CMA CGM AMERIGO VESPUCCI / 082FME

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: HOUSTON, TX

Terminal Cut-Off: 15-DEC-2017 05:00 PM

Loading Terminal: BAYPORT CONTAINER
 TERMINAL

VGM Cut-Off Date/Time: 15-DEC-2017 12:00 PM

ETD: 22-DEC-2017 13:42

Transshipment: ANTWERP

ETA: 07-JAN-2018 05:30 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 04-DEC-17 Time:

Quantity: 1 x 40'HC HS Commodity: Vehicles specially designed fo

BOC Commodity: sp golf car ABDD

Net Weight: 44092.452 LBS

Gross Weight: 52690.481 LBS

Container Number: SEGU4981655 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: BAYPORT CONTAINER TERMINAL

Phone No: 281-291-6074

Address: 12619 Port Road

HOUSTON, TX

77586

UNITED STATES

Remarks: 10 C DAYS FREE TIME SC

Booking Number: **NAM2937909**

Charge	Pre/Coll	Curr	Amount	Basis	Total
BASIC FREIGHT	P	USD		Unit(s)	
Container inspection fees and survey	C	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking ConfirmationBooking Number: **NAM2937909**

- 6 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
- 8 No express Bill of Lading allowed.
- 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 11 For self propelled vehicle shipments, the auto must run until stalled.
- 12 Shipments of Automobiles over 7 years of age prohibited.
- 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 14 For Automobile Shipments, container with auto must be received at the port 72 hours prior to vessel arrival.
- 15 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 16 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
- 17 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
- 18 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 19 Effective 9/1/09, the Port of Houston Authority will require hazardous documents to be emailed to haz@poha.com, twenty four (24) hours prior to the container arrival at the terminal. If this process is not followed, the trucking company will be turned away. Any cost associated with mis-delivery attempts shall be for the account of the shipper of record.
- 20 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 21 Please check the POHA website at <http://info.poha.com/traffic/bay/vesselschedule.pdf> for the most updated vessel schedules and earliest receiving at the terminal. We encourage our customers to review this website in order to prevent early attempts of delivering cargo to the terminal.
- 22 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 23 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 33 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 34 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: John Cavanaugh

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
63 NEW HOOK RD, TEL: 201-858-8600,
BAYONNE, NJ 07002. USA

Ref: EO-48566

Booking Number: **NAM2935611** Bkg Pty Ref: AUTO CUT 2/13 Booking Date: 29-NOV-17

Vessel/Voyage: CMA CGM NERVAL / 286INE

Connecting Vessel / Voyage: HOUSTON EXPRESS / 206MXE

Receipt:

Alternate Base Port:

Alternate Base Pool:

Feeder Vessel/Voyage: /

Port Of Loading: NEW YORK, NY

Loading Terminal: APM ELIZABETH NJ

Transshipment: JEDDAH

Port Of Discharge: JEBEL ALI

Final Place Of Delivery:

Terminal Cut-Off:

Terminal Cut-Off:

ETD:

Terminal Cut-Off: 16-FEB-2018 04:00 PM

VGM Cut-Off Date/Time: 16-FEB-2018 12:00 PM

ETD: 21-FEB-2018 18:00

ETA: 16-MAR-2018 11:00 AM

ETA: 30-MAR-2018 11:00

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 30-NOV-17 Time:

Quantity: 2 x 40'HC HS Commodity: Other motor cars and other mot

BOC Commodity: AUTO SP ABDD

Net Weight: 44092.452 LBS Gross Weight: 61288.508 LBS

Container Number: CMAU5454680 / TCLU5063972 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: APM ELIZABETH NJ

Address: 5080 MCLESTER ST

NEW YORK, NY

07201

UNITED STATES

Remarks: 10 C DAYS FREE TIME DETENTION

Contact: Rail Billing: 757-961-2300

Phone No: EQ:757-961-2102

PLEASE NOTE:



Run 13-FEB-18 02:25 PM

Booking Number: **NAM2935611**

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

Please note the Doc Cut information provided above is subject to change in accordance to vessel activity, you will receive

subsequent emails prompting you for Shipping Instructions in advance of the actual cargo cut date.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 4 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 5 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 6 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 7 For self propelled vehicle shipments, the auto must run until stalled.
- 8 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 9 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied along with any other additional expenses incurred by the use of the equipment.



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Booking Number: **NAM2935611**

- 10 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
 - 11 For Automobile Shipments, NYC / NJ ports will only accept autos the 1st and 2nd of vessel receiving. For customs clearance, cargo must arrive at the port 72 hours prior to the port cut-off.
 - 12 For rail billing requests please call, 757-961-2300, or e-mail, usa.exporthairbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
 - 13 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
 - 14 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
 - 15 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
 - 16 For self-propelled agricultural machinery (any automobile, truck, tractor, bus, motorcycle, motor home, self-propelled construction equipment, self-propelled special use equipment, and any other self-propelled vehicle used or designed for running on land but not rail) container needs to ingate the terminal 72 hours prior to vessel cut just like automobile shipments. For additional information, please check http://www.cbp.gov/xp/cgov/trade/basic_trade/export_docs/motor_vehicle.xml
 - 17 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exporthairbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
 - 18 Self-propelled vehicles can only be returned during the first 2 days of receiving for the NYC services to meet the 72 hour auto cut-off
 - 19 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
 - 20 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
 - 21 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
 - 22 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
 - 23 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
 - 24 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
 - 25 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
 - 26 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
 - 27 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
 - 28 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
 - 29 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed.
- Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.

63 HOOK RD, TEL: 201-858-8600

BAYONNE, NJ 07002. USA

Booking Number: **NAM2935492**

Bkg Pty Ref:

Booking Date: 29-NOV-17

Vessel/Voyage: MEHUIN / 290INE

Connecting Vessel / Voyage: NORTHERN JAVELIN / 210MXE

Receipt:

Alternate Base Port:

Alternate Base Pool:

Feeder Vessel/Voyage: /

Port Of Loading: NEW YORK, NY

Loading Terminal: APM ELIZABETH NJ

Transshipment: JEDDAH

Port Of Discharge: SALALAH

Final Place Of Delivery:

Terminal Cut-Off:

Terminal Cut-Off:

ETD:

Terminal Cut-Off: 27-FEB-2018 04:00 PM

VGM Cut-Off Date/Time: 27-FEB-2018 12:00 PM

ETD: 03-MAR-2018 18:00

ETA: 26-MAR-2018 06:40 AM

ETA: 29-APR-2018 15:00

FPD ETA:

(All times are in local time)

Remarks:

 Merchant Haulage By: Road Eqp Available Date: 29-NOV-17 Time:

Quantity: 1 x 40'HC HS Commodity: Other motor cars and other mot

BOC Commodity: Autos ABDD, SP

Net Weight: 20000 LBS Gross Weight: 28598.028 LBS

Container Number: GVCU5007582 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: APM ELIZABETH NJ

Address: 5080 MCLESTER ST

NEW YORK, NY

07201

UNITED STATES

Contact: Rail Billing: 757-961-2300

Phone No: EQ:757-961-2102

Remarks: 10 C days. Please ensure to email equipment the day of release to put EDO on file.

Booking Number: **NAM2935492**

Charge	Pre/Coll	Curr	Amount	Basis	Total
Change of vess or dest., incl Roll ove	P	USD		Unit(s)	
Change of vess or dest., incl Roll ove	P	USD		Unit(s)	
BASIC FREIGHT	P	USD		Unit(s)	
Terminal handl. ch destination	C	OMR		Unit(s)	
Export documentation fee	P	USD		Fixed Amount	
Change of destination(at sea) fee, incl	P	USD		Fixed Amount	
FREIGHT CH. ADDITIONAL NOS	P	USD		Unit(s)	
Delivery Order fee	C	OMR		Unit(s)	
Container Cleaning Charge	C	OMR		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight. CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

¹ The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.

Booking Confirmation



Booking Number: **NAM2935492**

- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 4 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 5 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 6 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 7 For self propelled vehicle shipments, the auto must run until stalled.
- 8 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
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- 16 For self-propelled agricultural machinery (any automobile, truck, tractor, bus, motorcycle, motor home, self-propelled construction equipment, self-propelled special use equipment, and any other self-propelled vehicle used or designed for running on land but not rail) container needs to ingate the terminal 72 hours prior to vessel cut just like automobile shipments. For additional information, please check http://www.cbp.gov/xp/cgov/trade/basic_trade/export_docs/motor_vehicle.xml
- 17 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exporttrailing@cmacgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 18 Self-propelled vehicles can only be returned during the first 2 days of receiving for the NYC services to meet the 72 hour auto cut-off
- 19 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
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- 21 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 22 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 23 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 24 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 25 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 26 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 27 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 28 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 29 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Booking Number: **NAM2935494** Bkg Pty Ref: Booking Date: 29-NOV-17

Vessel/Voyage: CMA CGM NERVAL / 270INE

Connecting Vessel / Voyage: COSCO SHIPPING DANUBE / 276BXE

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: NEW YORK, NY

Terminal Cut-Off: 18-DEC-2017 04:00 PM

Loading Terminal: APM ELIZABETH NJ

VGM Cut-Off Date/Time: 18-DEC-2017 12:00 PM

ETD: 22-DEC-2017 16:48

Transshipment: PORT SAID

ETA: 14-JAN-2018 12:00 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 29-NOV-17 Time:
 Quantity: 1 x 40'HC HS Commodity: Other motor cars and other mot
 BOC Commodity: AUTOS DTD // ABDD ON FILE sp

Net Weight: 20000 LBS Gross Weight: 28598.028 LBS

Container Number: BEAU4065028 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: APM ELIZABETH NJ

Contact: Rail Billing: 757-961-2300

Address: 5080 MCLESTER ST

Phone No: EQ:757-961-2102

NEW YORK, NY

07201

UNITED STATES

Remarks: 10 FREE CALENDAR DAYS

Booking Number: **NAM2935494**

Charge	Pre/Coll	Curr	Amount	Basis	Total
Change of vess or dest., incl Roll ove	P	USD		Unit(s)	
BASIC FREIGHT	P	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking Confirmation

Booking Number: **NAM2935494**

- 6 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
 - 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
 - 8 No express Bill of Lading allowed.
 - 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
 - 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
 - 11 For self propelled vehicle shipments, the auto must run until stalled.
 - 12 Shipments of Automobiles over 7 years of age prohibited.
 - 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
 - 14 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
 - 15 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
 - 16 For Automobile Shipments, NYC / NJ ports will only accept autos the 1st and 2nd of vessel receiving. For customs clearance, cargo must arrive at the port 72 hours prior to the port cut-off.
 - 17 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
 - 18 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
 - 19 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
 - 20 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
 - 21 For self-propelled agricultural machinery (any automobile, truck, tractor, bus, motorcycle, motor home, self-propelled construction equipment, self-propelled special use equipment, and any other self-propelled vehicle used or designed for running on land but not rail) container needs to ingate the terminal 72 hours prior to vessel cut just like automobile shipments. For additional information, please check http://www.cbp.gov/xp/cgov/trade/basic_trade/export_docs/motor_vehicle.xml
 - 22 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
 - 23 Self-propelled vehicles can only be returned during the first 2 days of receiving for the NYC services to meet the 72 hour auto cut-off
 - 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
 - 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
 - 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
 - 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
 - 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
 - 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
 - 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
 - 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
 - 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
 - 33 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
 - 34 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed.
- Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Kimberly Arnette

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
 63 NEW HOOK RD, TEL: 201-858-8600,
 BAYONNE, NJ 07002. USA

Booking Number: **NAM2937606** Bkg Pty Ref: Booking Date: 30-NOV-17

Vessel/Voyage: PRIORITY / 280INE
 Connecting Vessel / Voyage: TORRENTE / 154EHE

Receipt:

Alternate Base Port:	Terminal Cut-Off:	
Alternate Base Pool:	Terminal Cut-Off:	
Feeder Vessel/Voyage: /	ETD:	
Port Of Loading: NEW YORK, NY	Terminal Cut-Off:	24-JAN-2018 04:00 PM
Loading Terminal: APM ELIZABETH NJ	VGM Cut-Off Date/Time:	24-JAN-2018 12:00 PM
	ETD:	27-JAN-2018 18:00
Transshipment: JEDDAH	ETA:	24-FEB-2018 07:15 PM
Port Of Discharge: SALALAH	ETA:	13-MAR-2018 10:00
Final Place Of Delivery:	FPD ETA:	

(All times are in local time)

Remarks:

Merchant Haulage	By: Road	Eqp Available Date: 01-DEC-17	Time:
Quantity:	1 x 40'HC	HS Commodity: Other motor cars and other mot	
		BOC Commodity: AUTOS SP ABDD	
Net Weight:	44092.452 LBS	Gross Weight:	52690.481 LBS

Container Number: CMAU5036192 /

Quote: QNAM038896

Service Contract:

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: APM ELIZABETH NJ

Address: 5080 MCLESTER ST
 NEW YORK, NY
 07201

UNITED STATES

Contact: Rail Billing: 757-961-2300

Phone No: EQ:757-961-2102

Remarks: 10 CALENDAR FREE DAYS IN SC

Booking Number: **NAM2937606**

Charge	Pre/Coll	Curr	Amount	Basis	Total
Change of vess or dest., incl Roll ove	P	USD		Unit(s)	
Terminal handl. ch destination	C	OMR		Unit(s)	
Export documentation fee	P	USD		Fixed Amount	
Change of destination(at sea) fee, incl	P	USD		Fixed Amount	
Delivery Order fee	C	OMR		Unit(s)	
Container Cleaning Charge	C	OMR		Unit(s)	
Late B/L Pick-Up Fee	C	OMR		Unit(s)	
Administration fee for extending D/O	C	OMR		Unit(s)	
OCEAN FREIGHT	P	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight. CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

¹ The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.

Booking Confirmation

Booking Number: **NAM2937606**

- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 4 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 5 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 6 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 7 For self propelled vehicle shipments, the auto must run until stalled.
- 8 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 9 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 10 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
- 11 For Automobile Shipments, NYC / NJ ports will only accept autos the 1st and 2nd of vessel receiving. For customs clearance, cargo must arrive at the port 72 hours prior to the port cut-off.
- 12 For rail billing requests please call, 757-961-2300, or e-mail, usa.exporttrailing@cmacgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 13 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
- 14 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 15 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 16 For self-propelled agricultural machinery (any automobile, truck, tractor, bus, motorcycle, motor home, self-propelled construction equipment, self-propelled special use equipment, and any other self-propelled vehicle used or designed for running on land but not rail) container needs to ingate the terminal 72 hours prior to vessel cut just like automobile shipments. For additional information, please check http://www.cbp.gov/xp/cgov/trade/basic_trade/export_docs/motor_vehicle.xml
- 17 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exporttrailing@cmacgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
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- 19 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 20 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 21 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
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- 25 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 26 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 27 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
- 28 Please note that the first day of standard equipment return is four (4) working days prior to (five including the port cut) your operational cargo cutoff date unless you have negotiated different terms. This applies for Shipper Owned containers as well.
- 29 Reduced, Delayed or Cancelled Booking Fees: If Shipper takes possession of containers and later returns all or any portion of the containers empty due to a reduction in or delayed loading of the expected units for that particular booking or out right booking cancellation, the Shipper or responsible party shall be liable for any charges resulting from use of Equipment, including but not limited to terminal charges due to the receiving and/or releasing depot, gate fees, terminal handling charges, truck charges, dray charges or any other associated fees assessed. Units returned empty due to a reduction in or delayed loading of the expected units for a booking shall have no Free Time Detention (off dock terminal/CY), and no Free Time Demurrage (on dock terminal/CY). Shipper or the responsible party will be liable for any and all of these accrued charges as per Tariff.

Booking Confirmation

CMA CGM (America) LLC

5701 LAKE WRIGHT DRIVE

NORFOLK

Phone:

Fax:

Contact: Marta Gray

Customer Service:

Shipper: MARINE TRANSPORT LOGISTIC, INC.
63 NEW HOOK RD, TEL: 201-858-8600,
BAYONNE, NJ 07002. USA

Ref: EO-48691

Booking Number: **NAM2937904** Bkg Pty Ref: AUTO CUT 12/13 Booking Date: 01-DEC-17

Vessel/Voyage: APL HOLLAND / 266VBE

Connecting Vessel / Voyage: CMA CGM AMERIGO VESPUCCI / 082FME

Receipt:

Alternate Base Port:

Terminal Cut-Off:

Alternate Base Pool:

Terminal Cut-Off:

Feeder Vessel/Voyage: /

ETD:

Port Of Loading: HOUSTON, TX

Terminal Cut-Off: 15-DEC-2017 05:00 PM

Loading Terminal: BAYPORT CONTAINER
TERMINAL

VGM Cut-Off Date/Time: 15-DEC-2017 12:00 PM

ETD: 22-DEC-2017 13:42

Transshipment: ANTWERP

ETA: 07-JAN-2018 05:30 PM

Port Of Discharge: ADEN

ETA: 20-NOV-2018 19:00

Final Place Of Delivery:

FPD ETA:

(All times are in local time)

Remarks:

Merchant Haulage By: Road Eqp Available Date: 04-DEC-17 Time:

Quantity: 1 x 40'HC HS Commodity: Other motor cars and other mot

BOC Commodity: Autos SP ABDD

Net Weight: 44092.452 LBS

Gross Weight: 52690.481 LBS

Container Number: ECMU9889149 /

Quote:

Service Contract: 17-1619

HAZ: N

FUM: N

Reefer: N

OverSized Cargo: N

Flexitank: N

Preferred Depot: BAYPORT CONTAINER TERMINAL

Phone No: 281-291-6074

Address: 12619 Port Road

HOUSTON, TX

77586

UNITED STATES

Remarks: 10 CALENDAR FREE DAYS IN SC

Booking Number: **NAM2937904**

Charge	Pre/Coll	Curr	Amount	Basis	Total
BASIC FREIGHT	P	USD		Unit(s)	
Container inspection fees and survey	C	USD		Unit(s)	

PLEASE NOTE:

Please send Shipping Instructions to usa.exportsi@cma-cgm.com or fax 866-333-4222.

All dates and times noted in this booking confirmation and/or published by CMA CGM are estimates only and subject to change without prior notice.

Please check our website for the most up to date vessel schedule date and port cut prior to delivery of cargo.

Shipment shall be subject to CMA CGM bill of lading terms and conditions available in any CMA CGM agency or CMA CGM web site: www.cma-cgm.com

For shipments booked on a "freight collect" basis the shipper assumes responsibility for payment of all freight and charges invoiced to the receiver.

The shipper agrees to satisfy all outstanding charges should they remain unpaid for more than three consecutive days after discharge.

Visit our website at www.cma-cgm.com to submit Bookings, Shipping Instructions, Track and Trace cargo, get up-to-date Sailing Schedules etc. eBusiness registration is FREE and allows customer access to view and print bill of lading Drafts, Waybills and Original bills of lading.

USPPI (U.S. Principal Party In Interest) agrees that these commodities, technology or software will be shipped from the United States in accordance with all U.S. laws. Diversions contrary to U.S. law prohibited.

The ports of Los Angeles and Long Beach have enacted the Clean Truck Program fee. It is the responsibility of all shippers to register at www.PierPass-tmf.org or www.PortCheck.org in order to claim freight.

CMA CGM will not be responsible for additional rail storage or fees that result from the shipper's failure to claim cargo.

For DOOR moves, the collection date is the first available date a booking is able to load. Actual loading may occur any day within 4 business days prior to the ramp/port cut date.

If your cargo is booked to move via rail, please verify that it is not a restricted or forbidden commodity by going to <http://www.cma-cgm.com/local/united-states/news/5/restricted-cargo-rail-road>

Click on the link "Commodities and Cargos Restricted and Prohibited by North American Railroads" and check the appropriate tabs. Any costs associated with the rejection, delay, or re-work of containers if the commodity is restricted or forbidden will be for the shipper's expense.

For Automobile Shipments moving on the rail and sailing out of NY / NJ, containers must be received at the rail ramp during the first two days of receiving in order to be at the port in time for customs clearance.

By securing a booking with CMA CGM you agree for your company to receive all e-mail communication generated by CMA CGM America as it relates to your b/l, including mass notifications generated automatically from our system.

CLAUSES:

- 1 The Carrier is committed to comply with all applicable International and National Economic Sanctions such as, but not limited to, United Nations, European Union and U.S. legislations ("Sanctions") and their corresponding banned entities lists such as, but not limited to, the Special Designated National and Blocked Persons List (OFAC) the European Union List of Persons and Entities Subject to Financial Sanctions.
- 2 Following to the slowdown / lock out affecting the US west coast ports, cargo may not be loaded on the intended vessel and remain idle at port of loading for an undetermined period. All additional costs, including but not limited to storage, demurrage, or extra costs such as on forwarding freight shall be payable prior to loading.
- 3 Following to the events affecting Yemen and considering the potential closure of Hodeidah port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.
- 4 Hence, the Carrier reserves its right to decline or cancel, at any time, any booking involving listed entities or breaching any Sanctions. If cargo is loaded, it may be discharged at any place and time the Carrier may deem convenient and Clause 10 Matters Affecting Performance of the Carrier's Bill of Lading shall apply.
- 5 Following to the events affecting Yemen and considering the potential closure of Aden port at time of arrival, cargo may be discharged in an alternative port without notice and - subject to availability - be on forwarded to the original intended port of destination. All additional costs, including but not limited to storage, demurrage at the alternative discharge port or extra on forwarding costs, shall be for Merchant's account and payable upon delivery.

Booking ConfirmationBooking Number: **NAM2937904**

- 6 Receipt of an CMA CGM booking confirmation shall not be construed as a confirmation of acceptance of Hazardous / Dangerous cargo. Such cargo will only be accepted subject to the shipper or his agent supplying correctly completed and signed Multimodal Dangerous Goods Forms and receiving written acceptance from CMA CGM notifying that such hazardous / dangerous cargo as described on the relevant Multimodal Dangerous Goods Forms has been accepted by the Vessel Operator for the particular ocean voyage as per booking. Any costs, expenses, fines and penalties associated with cargo presented for shipment without such written acceptance from CMA CGM confirming the acceptance of hazardous / dangerous cargo, incorrectly completed and / or signed Multimodal Dangerous Goods Forms or containers not having correct placards shall be for cargo interests' account. CMA CGM shall not be liable for any consequential losses or damages arising from the rejection or refusal to load hazardous / dangerous cargo by the Vessel Operator.
- 7 Carrier underlines that any shipment to Hodeidah in Yemen is subject to confirmation from the United Nations Verification and Inspection Mechanism (UNVIM). The UNVIM may establish at its discretion that shipment contains items in violation of the embargo imposed by the United Nations Security Council resolution 2216 (2015) and thus reject the import of the Goods in Yemen. In such case Carrier shall have the liberty to discontinue the carriage and discharge the Goods at any safe and convenient port at Merchant's costs, risks and expenses and further reserves all its rights under clause 10 of the bill of lading.
- 8 No express Bill of Lading allowed.
- 9 For Automobile Shipments, Customs Clearance must take place at the Port of Load.
- 10 The shipper acknowledges that the Carrier is authorized to carry the Goods identified in the Bill of Lading on the deck of the vessel and in taking remittance of the Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the carriage of the Goods on the deck of any vessel.
- 11 For self propelled vehicle shipments, the auto must run until stalled.
- 12 Shipments of Automobiles over 7 years of age prohibited.
- 13 Cargo which, upon request of shipper is diverted to a point or port of discharge other than the one showing on the booking confirmation and CMA-CGM has taken possession of the cargo, will be subject to diversion fees according to the applicable tariff and charges will be for the Shipper's account.
- 14 For Automobile Shipments, container with auto must be received at the port 72 hours prior to vessel arrival.
- 15 When a booking is cancelled with container movement, a cancelled booking fee of \$125 per booking will be applied for non-refrigerated containers and \$500 per booking for refrigerated containers, along with any other additional expenses incurred by the use of the equipment.
- 16 Shipments of Scrap metal, Waste paper, Household Goods, Plastic Scrap or Personal Effects must move on a PREPAID basis.
- 17 For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements or CMA CGM requirements listed on this confirmation, the booking will be rolled and applicable charges will be assessed.
- 18 For rail billing requests please call, 757-961-2300, or e-mail, usa.exportrailbilling@cma-cgm.com. Please note rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). Please provide the below information in order for rail billing to be submitted: Booking number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments. Please put all info in the body of the e-mail. Please allow for two hours for railbilling to be processed.
- 19 Effective 9/1/09, the Port of Houston Authority will require hazardous documents to be emailed to haz@poha.com, twenty four (24) hours prior to the container arrival at the terminal. If this process is not followed, the trucking company will be turned away. Any cost associated with mis-delivery attempts shall be for the account of the shipper of record.
- 20 Rail billing may not be submitted after the rail cut has passed and no earlier than four business days prior to (five including the rail cut). The following information is required in order for rail billing to be submitted: Booking Number, container number, accurate weight, seal number, trucking company, contact name and phone number. Please do not send e-mail requests as attachments, all required information should be listed in the body of the e-mail. Please allow at least two hours for requests to be processed.
- 21 Please check the POHA website at <http://info.poha.com/traffic/bay/vesselschedule.pdf> for the most updated vessel schedules and earliest receiving at the terminal. We encourage our customers to review this website in order to prevent early attempts of delivering cargo to the terminal.
- 22 For shipments of automobiles that will move on the rail, the following restrictions apply: Only 1 vehicle can be loaded per 20' Standard Container and 2 vehicles per 40' Standard Container. Vehicles cannot be stacked suspended with wire, chains, bandings or blocking above the floor. All tires of each vehicle must remain on the container floor.
- 23 For shipments of automobiles that will move on the rail, a dock receipt is required and should be sent to usa.exportrailbilling@cma-cgm.com. It must include a signed and dated statement confirming that the battery has been disconnected and all fuel has been drained.
- 24 Cutoff for Hazardous cargo is one business day prior to general cargo cutoff.
- 25 CMA CGM cannot accept shipments for the following commodities: Animal Hides, Carbon, Carbon Black, Exhibition Goods / Time Sensitive Cargo, Steel Coils (via rail).
- 26 Flexitanks / Bladder, construction equipment, metal coils or concentrated metal of any type cannot be transported on the rail.
- 27 Personal Effects / Household Goods are not permitted for DOOR moves and cannot be transported on the Canadian Rail.
- 28 If the shipper of record does not have credit with CMA CGM, the following payment policy applies: If freight payment is not received within 14 calendar days of vessels' departure, a late payment fee of \$50 per B/L will be assessed. Additionally, a late payment fee of \$200 per B/L will be further assessed if payment is not received within 30 calendar days of vessels' departure. These fees must be paid in full prior to B/L and cargo release.
- 29 FLEXI TANKS / BLADDERS: In the event that shipment is effected via flexi-tanks or bladders, shipment shall be subject to CMA CGM requirements for Letter(s) of Indemnity. Customer is liable for any and all damages, liabilities, or expenses arising from carriage of cargo in flexi-tanks or bladders, including, but not limited to: cleaning costs, container cleaning, repairs or replacement, third party damages, civil or criminal penalties, and/or consequential or indirect claims arising from leakage, spillage or inadvertent release.
- 30 Diversions/C.O.D. requests must be received no less than 72 hours prior to vessel arrival at destination provided the cargo being diverted does not require a change in transshipment port. If this is the case, notification will need to be received within 48 hours of cargo arrival at transshipment. All cost for the Diversion will be for the Shipper's account.
- 31 Bolt Seals are required for cargo discharging in or transshipping through India or Pakistan. If bolt seals are not applied CMA CGM will do so at shipper's expense at a charge of \$100 USD.
- 32 Potential labor unrest and action at US East Coast and Gulf ports may result in port congestion throughout the US and Canada. In the event such conditions arise, a port congestion surcharge will apply to cargo arriving in or departing the US or Canada as follows: \$ 800/D20, \$ 1000/D40, \$ 1100/H40 and \$ 1266/H45 container.
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